

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C
Tuesday August 4, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 624 8977 Password: 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM

LINE 1

21-CIV-04299

LORI WILLIAMS, ET AL. VS. BAYWOOD CAPITAL CORPORATION, ET AL.

LORI WILLIAMS
BAYWOOD CAPITAL CORPORATION

PRO SE
DAVID J. STREZA

DEFENDANT BAYWOOD CAPITAL CORPORATION'S MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED AS TO PLAINTIFF LORI WILLIAMS; REQUEST FOR SANCTIONS

TENTATIVE RULING:

On June 16, 2026, defendants Baywood Capital Corporation filed this motion. On July 28, 2026, at the case management/trial setting conference, with the parties' agreement, the hearing was advanced to August 4, 2026. If the motion had not been advanced, the trial could not have been set within five-years as all parties agreed that there had been no tolling.

The court GRANTS defendant Baywood Capital Corporations motion for an order deeming Defendant's Requests for Admission, Set Three, to plaintiff Lori Williams (RFA).

On May 5, 2026, defendant served the RFA on Lori Williams and no responses have been received or extensions granted. (Babajanov Decl., ¶¶ 2-4.) If there are no responses, there are no time limits to bring a motion and there is no need to informally resolve the dispute. (*Cal. Prac. Guide Civ. Pro. Before Trial*, §§ 8:1371, 8:1372 (TRG June 2026 update).)

Lori Williams has filed an opposition to the motion, but she provides no evidence that she has responded to the requests for admissions. She claims that the motion is untimely, but as stated above, there is no time limit when there are no responses. The motion was brought less than a month after responses were due. She does not show any bad faith or defendant acting in a scandalous manner. The complaint contains nine causes of action with numerous factual claims. Defendants are allowed to conduct discovery about each of the claims and defense counsel submitted a declaration for the additional requests when serving the discovery.

Discovery sanctions are mandatory when there is no response. (Code Civ. Proc., § 2033.280, subd. (c).) Thus, the court grants discovery sanctions in the amount of \$250.00 as a reasonable amount. Since defendant filed the same motion against each of the plaintiffs, the court finds that sanctions of \$250.00 against each plaintiff is reasonable.

The parties shall APPEAR. Zoom appearances are allowed. The court wants to discuss the impact that the ruling has on the trial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the

ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order shall attach the requests for admissions.

2:00 PM

LINE 2

21-CIV-04299

LORI WILLIAMS, ET AL. VS. BAYWOOD CAPITAL CORPORATION, ET AL.

LORI WILLIAMS
BAYWOOD CAPITAL CORPORATION

PRO SE
DAVID J. STREZA

DEFENDANT BAYWOOD CAPITAL CORPORATION'S MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED AS TO PLAINTIFF CLARENCE WILLIAMS; REQUEST FOR SANCTIONS

TENTATIVE RULING:

On June 16, 2026, defendants Baywood Capital Corporation filed this motion. On July 28, 2026, at the case management/trial setting conference, with the parties' agreement, the hearing was advanced to August 4, 2026. If the motion had not been advanced, the trial could not have been set within five-years as all parties agreed that there had been no tolling.

The court GRANTS defendant Baywood Capital Corporations motion for an order deeming Defendant's Requests for Admission, Set Three, to plaintiff Clarence Williams (RFA).

The court notes that the memorandum of points and authorities is not signed. The defect is curable and defendant is to file and serve a signed memorandum of points and authorities by August 6, 2026. (*Walton v. Victor Valley Community College Dist.* (2026) 119 Cal.App.5th 1164, 1170, as modified on denial of reh'g (Apr. 14, 2026), review denied (Jul. 22, 2026).)

On May 5, 2026, defendant served the RFA on Clarence Williams and no responses have been received or extensions granted. (Babajanov Decl., ¶¶ 2-4.) If there are no responses, there are no time limits to bring a motion and there is no need to informally resolve the dispute. (*Cal. Prac. Guide Civ. Pro. Before Trial*, §§ 8:1371, 8:1372 (TRG June 2026 update).)

Discovery sanctions are mandatory when there is no response. (Code Civ. Proc., § 2033.280, subd. (c).) Thus, the court grants discovery sanctions in the amount of \$250.00 as a reasonable amount. Since defendant filed the same motion against each of the plaintiffs, the court finds that sanctions of \$250.00 against each plaintiff is reasonable.

The parties shall APPEAR. Zoom appearances are allowed. The court wants to discuss the impact that the ruling has on the trial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order shall attach the requests for admissions.

2:00 PM

LINE 3

21-CIV-04299

LORI WILLIAMS, ET AL. VS. BAYWOOD CAPITAL CORPORATION, ET AL.

LORI WILLIAMS
BAYWOOD CAPITAL CORPORATION

PRO SE
DAVID J. STREZA

DEFENDANT BAYWOOD CAPITAL CORPORATION'S MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED AS TO PLAINTIFF MICHAEL WILLIAMS; REQUEST FOR SANCTIONS

TENTATIVE RULING:

On June 17, 2026, defendants Baywood Capital Corporation filed this motion. On July 28, 2026, at the case management/trial setting conference, with the parties' agreement, the hearing was advanced to August 4, 2026. If the motion had not been advanced, the trial could not have been set within five-years as all parties agreed there had been no tolling.

The court GRANTS defendant Baywood Capital Corporations motion for an order deeming Defendant's Requests for Admission, Set Three, to plaintiff Michael Williams (RFA).

On May 5, 2026, defendant served the RFA on Michael Williams and no responses have been received or extensions granted. (Babajanov Decl., ¶¶ 2-4.) If there are no responses, there are no time limits to bring a motion and there is no need to informally resolve the dispute. (*Cal. Prac. Guide Civ. Pro. Before Trial*, §§ 8:1371, 8:1372 (TRG June 2026 update).)

Discovery sanctions are mandatory when there is no response. (Code Civ. Proc., § 2033.280, subd. (c).) Thus, the court grants discovery sanctions in the amount of \$250.00 as a reasonable amount. Since defendant filed the same motion against each of the plaintiffs, the court finds that sanctions of \$250.00 against each plaintiff is reasonable.

The parties shall APPEAR. Zoom appearances are allowed. The court wants to discuss the impact that the ruling has on the trial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The order shall attach the requests for admissions.

2:00 PM

LINE 4

21-CIV-04299

LORI WILLIAMS, ET AL. VS. BAYWOOD CAPITAL CORPORATION, ET AL.

LORI WILLIAMS
BAYWOOD CAPITAL CORPORATION

PRO SE
DAVID J. STREZA

PLAINTIFF'S MOTION FOR PETITION TO QUASH MONETARY SANCTIONS, OBJECTION TO PETITION FILED BY DAVID J. STREZA

TENTATIVE RULING:

On June 29, 2026, plaintiff Lori Williams filed a motion for petition to quash monetary sanctions, objection to petition filed by David J. Streza. On July 28, 2026, at the case management/trial setting conference, with the parties' agreement, the hearing was advanced to August 4, 2026. If the motion had not been advanced, the trial could not have been set within five-years as all parties agreed that there had been no tolling.

The court DENIES the motion. The motion does not comply with the procedural rules because it does not identify the nature for the order being sought and the grounds for the motion, or include a memorandum of points and authorities. (Cal. Rules of Court, rules 3.1110(a),(b). 3.1113.) It is unclear what monetary sanctions that Williams seeks to quash and there is no petition filed by David Streza.

The parties shall APPEAR. Zoom appearances are allowed. The court wants to discuss the impact that the ruling has on the trial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 5

21-CIV-04299

LORI WILLIAMS, ET AL. VS. BAYWOOD CAPITAL CORPORATION, ET AL.

LORI WILLIAMS
BAYWOOD CAPITAL CORPORATION

PRO SE
DAVID J. STREZA

MOTION FOR ORDER DEEMING ADMITTED TRUTH OF FACTS AND GENUINENESS OF DOCUMENTS

TENTATIVE RULING:

On June 29, 2026, plaintiff Lori Williams filed a motion for order deeming admitted truth of facts and genuineness of documents. On July 28, 2026, at the case management/trial setting conference, with the parties' agreement, the hearing was advanced to August 4, 2026. If the motion had not been advanced, the trial could not have been set within five-years as all parties agreed that there had been no tolling.

The court DENIES the motion. It is unclear if plaintiff served requests for admissions to defendants and seeks to have matters admitted, or if she is seeking to have some of the facts she alleges deemed true. Regardless, she has not attached the Exhibit A to the motion and thus, the court cannot determine what Exhibit A is and whether it was properly served. She has not met her burden on the motion.

The parties shall APPEAR. Zoom appearances are allowed. The court wants to discuss the impact that the ruling has on the trial.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 6

24-CIV-00280

INOCENCIO SANCHEZ VS. TERESA GODINEZ VIDRIO

INOCENCIO SANCHEZ
TERESA GODINEZ VIDRIO

MARIO FAUSTO
DYLAN HACKETT

DEFENDANT'S OBJECTIONS TO TENTATIVE DECISION AND PROPOSED STATEMENT OF DECISION

TENTATIVE RULING:

Pursuant to the emails between the court and the parties, the court continues the matter to August 11, 2026 at 2:00 p.m.

2:00 PM

LINE 7

24-CIV-01127

E.T.I. INT'L. VS. KEVIN YIP, ET AL.

E.T.I. INT'L., A CALIFORNIA CORPORATION
KEVIN YIP

BIN LI
MATTHEW D. MARCA

MOTION FOR PROTECTIVE ORDER

TENTATIVE RULING:

Defendants Kevin Yip, Katy Yip, Sau Chun Ng, and Q.S. International Logistics, Inc.'s Motion for Protective Order is DENIED.

The court has already granted the motion to seal.

Plaintiff's objections to evidence are OVERRULED.

A leading case explains the requirements of plaintiff's identification of its trade secret:

The Uniform Trade Secrets Act (Civ.Code, § 3426, *et seq.*) creates a statutory cause of action for the misappropriation of a trade secret. (See 13 Witkin, *Summary of Cal. Law* (10th ed. 2005) Equity, § 86, p. 382, *et seq.*) It defines a trade secret as “information, including a formula, pattern, compilation, program, device, method, technique, or process, that: [¶] (1) Derives independent economic value, actual or potential, from not being generally known to the public or to other persons who can obtain economic value from its disclosure or use; and [¶] (2) Is the subject of efforts that are reasonable under the circumstances to maintain its secrecy.” (Civ.Code, § 3426.1, subd. (d).)

When adopting the Uniform Trade Secrets Act in 1984, the California Legislature also enacted a separate statutory provision, now found in section 2019.210 (part of the Civil Discovery Act), which requires, in relevant part, that “[i]n any action alleging the misappropriation of a trade secret under [the Uniform Trade Secrets Act], ... before commencing discovery relating to the trade secret, the party alleging the misappropriation shall *identify the trade secret with reasonable particularity*.” (Italics added; see *Computer Economics, Inc. v. Gartner Group Inc.* (1999) 50 F.Supp.2d 980, 984–986 (*Computer Economics*) [discussing legislative history of former section 2019, subd. (d)].) The statute was intended to codify *Diodes, Inc. v. Franzen* (1968) 260 Cal.App.2d 244, 251–252, 67 Cal.Rptr. 19 (*Diodes*), that before a trade secret defendant must submit to potentially costly litigation and discovery, “the complainant should describe the subject matter of the trade secret with sufficient particularity to separate it from matters of general knowledge in the trade or of special knowledge of those persons who are skilled in the trade, and to permit the defendant to ascertain at least the boundaries within which the secret lies.” (*Id.* at p. 253, 67 Cal.Rptr. 19.) The purpose of such a requirement, as expressed in *Diodes*,

was to “supply sufficient data ... to give both the court and the defendant reasonable notice of the issues which must be met at the time of trial and to provide reasonable guidance in ascertaining the scope of appropriate discovery.” (*Ibid.*)

It has since been said that section 2019.210 serves four interrelated goals: “ ‘First, it promotes well-investigated claims and dissuades the filing of meritless trade secret complaints. Second, it prevents plaintiffs from using the discovery process as a means to obtain the defendant's trade secrets. [Citations.] Third, the rule assists the court in framing the appropriate scope of discovery and in determining whether plaintiff's discovery requests fall within that scope. [Citations.] Fourth, it enables defendants to form complete and well-reasoned defenses, ensuring that they need not wait until the eve of trial to effectively defend against charges of trade secret misappropriation. [Citation.]’ ” (*Advanced Modular, supra*, 132 Cal.App.4th at pp. 833–834, 33 Cal.Rptr.3d 901, quoting *Computer Economics, supra*, 50 F.Supp.2d at p. 985.)

The leading case construing section 2019.210 is *Advanced Modular, supra*, 132 Cal.App.4th 826, 33 Cal.Rptr.3d 901, which involved alleged trade secrets in the field of “sputtering”—“the process of depositing a thin and even film of material onto a silicon wafer or other substrate.” (*Id.* at p. 830, 33 Cal.Rptr.3d 901.) The plaintiff manufactured sputtering equipment, and claimed that the defendant misappropriated eight trade secrets in manufacturing its own sputtering machine. (*Id.* at pp. 831, 836, 33 Cal.Rptr.3d 901.) The defendant contended that the plaintiff's trade secret designations were inadequate under section 2019.210, and produced expert witness declarations to show that the alleged trade secrets were “too vaguely described to distinguish them from information that is already known in the industry.” (*Id.* at p. 831, 33 Cal.Rptr.3d 901.) The plaintiff, in turn, produced expert declarations stating, “that the trade secrets [were] adequately described, that they involve [d] information not commonly known in the industry, and that [the defendant's] experts [were] being purposefully obtuse when they claim[ed] confusion over the nature or boundaries of the alleged trade secrets.” (*Ibid.*)

In construing section 2019.210, the court observed that “[t]he letter and spirit of section 2019.210 require the plaintiff, subject to an appropriate protective order, to identify or designate the trade secrets at issue with ‘ “sufficient particularity” ’ to limit the permissible scope of discovery by distinguishing the trade secrets ‘ “from matters of general knowledge in the trade or of special knowledge of those persons ... skilled in the trade.” ’ [Citations.]” (*Advanced Modular, supra*, 132 Cal.App.4th at p. 835, 33 Cal.Rptr.3d 901.) Analogizing a trade secret designation to a pleading, the court stressed that the designation should be liberally construed in favor of the trade secret claimant, and that doubts about its adequacy should be resolved in favor of permitting discovery to go forward. (*Id.* at pp. 835, 836–837, 33 Cal.Rptr.3d 901.)

Further, the court emphasized the flexibility of the statutory standard: “ ‘Reasonable particularity’ mandated by section 2019.210 does not mean that the party alleging misappropriation has to define every minute detail of its claimed trade secret at the outset of the litigation. Nor does it require a discovery referee or trial court to conduct a

miniature trial on the merits of a misappropriation claim before discovery may commence. Rather, it means that the plaintiff must make some showing that is reasonable, i.e., fair, proper, just and rational [citation], under all of the circumstances to identify its alleged trade secret in a manner that will allow the trial court to control the scope of subsequent discovery, protect all parties' proprietary information, and allow them a fair opportunity to prepare and present their best case or defense at a trial on the merits. [Citations.] [¶] The degree of 'particularity' that is 'reasonable' will differ, depending on the alleged trade secrets at issue in each case. Where, as here, the alleged trade secrets consist of incremental variations on, or advances in the state of the art in a highly specialized technical field, a more exacting level of particularity may be required to distinguish the alleged trade secrets from matters already known to persons skilled in that field. Nothing in section 2019.210 precludes the trial court from considering relevant evidence, including expert witness declarations, on the adequacy of a designation to describe the alleged trade secrets and distinguish them from prior art. But it remains true that, at this very preliminary stage of the litigation, the proponent of the alleged trade secret is not required, on pain of dismissal, to describe it with the greatest degree of particularity possible, or to reach such an exacting level of specificity that even its opponents are forced to agree the designation is adequate." (*Advanced Modular, supra*, 132 Cal.App.4th at pp. 835–836, 33 Cal.Rptr.3d 901.)

(*Brescia v. Angelin* (2009) 172 Cal.App.4th 133, 143–146 (*Brescia*).) Reasonable doubts about adequacy of the description are generally resolved in favor of allowing discovery. (*Id.* at p. 149.)

The court initially held a hearing on June 30, 2026, raised certain issues and requested supplemental briefing, which briefing has been provided.

Defendants concede that each of plaintiff's categories of documents can be trade secrets. (Defendants' Supplemental Brief in Support of Motion for Protective Order filed July 16, 2026 at p. 1). They argue, however, that the descriptions do not identify the non-public compilation that distinguishes the claimed trade secret from information that is readily known or attainable. (*Ibid.*)

Defendants' case law focuses on cases where the trade secret was of a technical nature. For example, *Brescia, supra*, 172 Cal.App.4th 133, 138-139, the alleged trade secret was proprietary information for a high-protein, low-carbohydrate pudding. Simply referring to 305 pages of attached documents was not sufficient because it obscured the trade secret (*id.* at pp. 142-143), but identification of the fifteen specific ingredients that constituted the pudding was sufficient. (*Id.* at pp. 149-150, 152.) Requiring that level of specificity of the specific ingredients claimed as trade secrets for a pudding makes sense because recipes for puddings abound and thus it is the "secret sauce" so to speak that makes the pudding a trade secret. (*Brescia* at p. 148 [referring to incremental variations or advances in the state of the art in a specialized technical field].)

In contrast, in this case, plaintiff claims its trade secrets are based on certain of its identified business documents. There is no specific ingredient that can be identified. The categories, for instance, of customer lists developed over time and profit and loss statements are the type of

categories of documents are sufficient to apprise defendants, especially Kevin Yip a former employee who worked at the company and worked with the documents, of the specific information plaintiff claims is a trade secret and for the court to control discovery. They are similar to the descriptions upheld by the Court of Appeal in *Whyte v. Schlage Lock Co.* (2002) 101 Cal.App.4th 1443, 1452-1454 (*Whyte*).

Defendants have already taken steps to attempt to refute plaintiff's claims by e.g. showing that defendant Kevin Yip had already worked for certain customers or that by looking at various websites, the information is disclosed. (See *Whyte, supra*, 101 Cal.App.4th at p. 1453 [defendant's president had no trouble understanding scope of putative trade secret information in deposition].) While defendants claim that their evidence shows that the claimed trade secrets are not trade secrets, the court considers this evidence as demonstrating that plaintiff's description is sufficient identification for the court to control the scope of subsequent discovery, protect all parties' proprietary information, and allow the parties to prepare and present their best case or defense at a trial on the merits. (*Brescia, supra*, 172 Cal.App.4th at pp. 148–149.)

Defendants contend that plaintiff did not keep the information confidential, but in the context of a small business, where there was a lot of trust, the court finds, at this juncture, a sufficient showing that the information was kept confidential.

Plaintiff's request for sanctions is denied. This is the type of motion where there was a reasonable disagreement that needed to be resolved by a judge.

There is a protective order in place filed September 12, 2025 that limits the dissemination of documents marked confidential or highly confidential.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 8

24-CIV-02856 NENAD MILANOVIC, ET AL. VS. ALICIA CHAN, ET AL.

NENAD MILANOVIC
ALICIA CHAN

MATTHEW D. HALEY
STEPHEN C. TOSCHI

DEMURRER TO CROSS-COMPLAINT AS TO CROSS-DEFENDANT COING, INC.

TENTATIVE RULING:

The demurrer is ordered off calendar. Cross-defendant did not provide proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the demurrer because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

At the time of filing, the hearing date on the notice of motion was changed. To date, the court’s record does not reflect the filing or service of an amended notice. While cross-complainants filed an opposition brief, they did not substantively reply and thus did not waive the defect. (See *Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1288; *Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

If the tentative ruling is not contested, it shall become the order of the court without the need for a formal order.

2:00 PM

LINE 9

24-CIV-06622

HAMID JARIBEAN, ET AL. VS. GEORGE RUNCIE, ET AL.

HAMID JARIBEAN
GEORGE RUNCIE

PRO SE
STEVEN R. ROESER

MOTION OF CROSS-DEFENDANT HAMID JAREBEAN TO SET ASIDE ENTRY OF DEFAULT

TENTATIVE RULING:

The court DENIES plaintiff/cross-defendant Hamid Jaribean's (plaintiff) motion to set aside a default entered against him in this matter. Defendants George and Nathalie Runcie have opposed the motion.

Defendants' Request for Judicial Notice of is GRANTED.

Plaintiff, then-represented by attorney Reshma Kamath, filed his complaint on October 24, 2024. On December 6, 2024, defendants filed and served their cross-complaint against plaintiff and co-plaintiff HR Construction & Remodeling. On October 21, 2025, the court entered a default against plaintiff. On November 8, 2025, Ms. Kamath's license to practice law was declared inactive by the State Bar. (RJN, Ex. A., State Bar Attorney Profile, License Status.) On April 24, 2026, more than six months after default was filed, plaintiff filed a notice of substitution of attorney – signed November 20, 2025 – substituting Ms. Kamath out and proceeding in pro per. Also on April 24, 2026, plaintiff filed the instant motion to set aside default, for which the proof of service was electronically signed by Ms. Kamath. On June 26, 2026, Ms. Kamath was disbarred.

The law favors judgments based on the merits, not procedural missteps. Our Supreme Court has repeatedly reminded us that in this area doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully than an order granting it. "As Justice Mosk put it in *Rappleyea [v. Campbell]* (1994) 8 Cal.4th 975] Because the law favors disposing of cases on their merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations]." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134–135 [internal quotations omitted].)

However, in most instances, the law also sets deadlines for motions for relief from default and in all circumstances established rules to obtain relief from default.

Plaintiff argues that the default should be set aside because no summons was ever served. This argument fails because plaintiff was already a party to the case, having filed the initial complaint. For represented parties who have appeared, a cross-complaint shall be served upon the party's attorney in the same manner provided for notices during litigation of the case. (Code Civ. Proc., § 428.60, subd. (2).) The cross-complaint was served on the attorney of record by email.

Similarly for the same reason, the entry of default is not void because there was proper service of the cross-complaint and legally sufficient service supporting default. It was proper for cross-complainant to serve plaintiff's counsel by email.

While the best practice is for counsel to provide notice before default is entered, plaintiff acknowledges that his counsel received notice of the request for entry of default, and neither plaintiff's counsel or plaintiff took any action for more than six months after the cross-complaint. At the time of default, the cross-complaint had been pending ten months (defendants served the cross-complaint on December 6, 2024, and default was not entered until October 21, 2025.)

Plaintiff suggests that the court can grant equitable relief based upon his attorneys' status. There is case law which allows such relief. (See e.g. *Moghaddam v. Bone* (2006) 142 Cal.App.4th 283, 290; *People v. One Parcel of Land* (1991) 235 Cal.App.3d 579, 584; *Orange Empire Nat. Bank v. Kirk* (1968) 259 Cal.App.2d 347, 354, but see *Kendall v. Barker* (1988) 197 Cal.App.3d 619, 625-626.)

If plaintiff believes that he has facts to support this court granting relief based upon attorney misconduct, he should properly contest the tentative ruling and make an offer of proof of these facts at the hearing. The court will then consider continuing the hearing and allowing for further briefing. If the tentative ruling is not properly contested or if a proper offer of proof is not made, then the motion is denied.

If the tentative ruling is uncontested, it shall become the order of the court as the motion being denied. Thereafter, counsel for defendant/cross-complainant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 10

25-CIV-06341

MOJTABA TAIEBAT VS. ANDREW G WATTERS

MOJTABA TAIEBAT
ANDREW G WATTERS

MICHAEL TSIVYAN
JERAMY STEPHEN STONE

DEMURER OF CROSS-DEFENDANT MICHAEL TSIVYAN

TENTATIVE RULING:

For the reasons stated below, Cross-defendant Michael Tsivyan's Demurrer to the Third Cause of Action in Andrew Watters' March 9, 2026 Cross-Complaint is SUSTAINED without leave to amend. (Code Civ. Proc. § 430.10, subd. (e).)

WATTERS' REQUEST FOR JUDICIAL NOTICE (RJN) IS DENIED

Watters' July 22, 2026 request for judicial notice (RJN) seeks judicial notice of a number of court rulings in *Marzieh Abdolyousefi et al vs. Mojtaba Taiebat et al*, Case No. 22CV398906, venued in the Santa Clara County Superior Court). The RJN attaches a copy of the case docket, but no other documents, including any court orders, are attached.

The party requesting judicial notice bears the burden of furnishing the court with sufficient information to enable it to take judicial notice. Merely identifying another case by name and case number is not sufficient where, as here, the party is asking the Court to recognize specific rulings or orders. It is not this Court's obligation to track down a laundry list of court orders from a case filed in Santa Clara County. Generally, the party requesting judicial notice should attach, as exhibit, any documents that it wishes this Court to review, rather than merely identifying a hyperlink to another court's docket. Further, here, the hyperlink does not appear to function.

The Court notes, however, that the RJN has had no bearing on the Court's ruling on the demurrer.

INSUFFICIENT MEET AND CONFER

Tsivyan's meet and confer declaration does not comply with Code of Civil Procedure section 430.41, which requires the demurring party to "meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer ..." (*id.*, § 430.41, subd. (a).) The statute requires the demurring party make *a genuine attempt to speak with the opposing side*. It does not suffice to send an email inviting the opposing attorney to initiate a call. In this case, Tsivyan sent an email and Watters' counsel failed to respond.

However, the failure to sufficiently meet and confer is not grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4); *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

The court reminds counsel of their professional obligations to engage in meaningful meet-and-confer to try to resolve issues.

LEGAL STANDARD ON DEMURRER

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) The demurrer may be made to the entire complaint or to any of the causes of action therein. (Code Civ. Proc., § 430.50, subd. (a).)

In determining whether a complaint states facts sufficient to constitute a cause of action, courts accept the factual allegations of the complaint and any matters of which judicial notice can be taken, but disregards contentions, deductions, and conclusions. (*Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) “The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context.” (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) Thus, the complaint is construed liberally (see Code Civ. Proc., § 452), and facts that may be inferred from those expressly alleged must also be accepted as true (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405).

THE DEMURRER TO CROSS-COMPLAINT’S THIRD CAUSE OF ACTION (“EQUITABLE INDEMNITY”) IS SUSTAINED

In malpractice lawsuits filed by former clients against their former attorney, for public policy reasons, California courts have consistently disallowed equitable indemnity counter-claims asserted by the former attorney (who is accused of malpractice) against the plaintiff’s/former client’s new/successor attorney. (See, e.g., *Holland v. Thacher* (1988) 199 Cal.App.3d 924, 928 [sustaining demurrer to equitable indemnity cross-complaint without leave to amend]; *Austin v. Superior Court* (1999) 72 Cal.App.4th 1126, 1128-30 [issuing writ of mandate ordering trial court to sustain demurrer to cross-complaint for contribution and indemnity]; *Held v. Arant* (1977) 67 Cal.App.3d 748, 751 [affirming order sustaining demurrer to cross-complaint for indemnity asserted by plaintiff’s former attorney against the successor attorney].) The holdings in this line of cases, which were raised/discussed in the moving papers, but were not addressed in the Opposition brief, are persuasive to this Court, and dispositive of Watters’ “equitable indemnity” cause of action.

The Opposition relies on *Parker v. Morton* (1981) 117 Cal.App.3d 751, 767, a 45-year old decision that has been almost uniformly rejected since that time, including by the First District Court of Appeal. Nearly twenty years after *Parker*, the same Fourth District Court of Appeal that decided *Parker* decided *Austin v. Superior Court*, *supra*, 72 Cal.App.4th 1126, in which the court stated:

Parker stands alone among a substantial number of cases. Every other case dealing with the subject concluded that the policies against permitting a claim of indemnity against the successor lawyer outweighed the policies favoring it. These cases include *Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116 [79 Cal.Rptr.2d 613]; *California State Auto. Assn. Inter-Ins. Bureau v. Bales* (1990) 221 Cal.App.3d 227 [270 Cal.Rptr. 421]; *Lewis v. Purvin* (1989) 208 Cal.App.3d 1208 [256 Cal.Rptr. 827]; *Holland v. Thacher* (1988) 199 Cal.App.3d 924 [245 Cal.Rptr. 247]; *Goldfisher v. Superior Court* (1982) 133 Cal.App.3d 12 [183 Cal.Rptr. 609]; *Pollack v. Lytle* (1981) 120 Cal.App.3d 931 [175 Cal.Rptr. 81]; *Rowell v. TransPacific Life Ins. Co.* (1979) 94 Cal.App.3d 818 [156 Cal.Rptr. 679]; and *Gibson, Dunn & Crutcher v. Superior Court* (1979) 94 Cal.App.3d 347 [156 Cal.Rptr. 326].

We join this chorus and conclude that *Parker v. Morton*, *supra*, 117 Cal.App.3d 751 was erroneously decided. The trial court erred in overruling petitioner's demurrer.

(*Austin v. Superior Ct.*, *supra*, 72 Cal.App.4th at 1129). See also *California State Auto. Assn. Inter-Ins. Bureau v. Bales* (1990) 221 Cal.App.3d 227, 233 [declining to follow *Parker v. Morton*].) Today, “[t]he clear weight of judicial authority prohibits the first attorney from cross-claiming for indemnity against the successor attorney.” (*Holland v. Thacher*, *supra*, 199 Cal.App.3d 924, 929.) This policy, however, does not stop the first attorney to reduce his or her exposure through the assertion of affirmative defense contending the successor attorney was negligent. (*Id.* at pp. 930-931.) The Court declines to follow *Parker v. Morton* for the reasons set forth in the Court of Appeal decisions criticizing *Parker v. Morton*.

Accordingly, Michael Tsivyan’s demurrer to the Cross-Complaint’s Third Cause of Action for equitable indemnity is sustained.

LEAVE TO AMEND IS DENIED

Although leave to amend is liberally allowed, such leave should not be granted where, in all probability as it appears to be in this case, amendment would be futile. (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1001.) It is the burden of the party seeking leave to amend to show the possibility that amendment can cure the legal defects of the pleading. (*Frayo v. Martin* (2024) 102 Cal.App.5th 1025, 1033.) Therefore, if Watters believes that he has facts sufficient to support amendment, he shall properly contest the tentative ruling and provide those facts at the hearing. Absent that showing, the Court sustains the demurrer to the third cause of action in the cross-complaint without leave to amend.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Michael Tsivyan shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 11

25-CIV-06521

FELICITO H. DESUASIDO, ET AL. VS. GENEVIEVE GALVEZ DESUASIDO

FELICITO H. DESUASIDO
GENEVIEVE GALVEZ DESUASIDO

MICHELLE L. ZACCONI
ANDREW C. MCCLELLAND

MOTION TO QUASH APRIL 2026 SERVICE OF SUMMONS

TENTATIVE RULING:

The motion to quash is DENIED. The evidence in opposition to the motion indicates that the service address is cross-defendant's usual place of business within the meaning of Code of Civil Procedure section 415.20 because it is his business enterprise. Due to the parties having the same last names, the court uses first names to refer to the parties and means no disrespect.

The proof of service states that Alexander Desuasido (referred to as Alvin) was served by substitute service on April 9, 2026, at his usual place of business located at 4802 Olympic Avenue in San Mateo. The documents were left with Kevin Lee, the individual in charge. The proof of service is signed by registered process server, Jeffrey Pink. As a result, there is a presumption, affecting the burden of producing evidence, of the facts stated. (Evid. Code, §647.)

Alvin's declaration states that Tech Rocks is not his usual place of business, that he does not maintain a regular office presence there, and that he does not regularly work there. However, Genevieve has provided evidence to show that Tech Rocks constitutes Alvin's usual place of business for purposes of substitute service. Alvin does nothing to rebut this specific evidence and the court accepts the specific facts in Genevieve's declaration over Alvin's conclusory declaration.

The Judicial Council Comment to Code of Civil Procedure section 415.20, subdivision (b) indicates that "usual place of business" includes a defendant's customary place of employment as well as his own business enterprise. The declaration of Steven Davidson indicates that Alvin is identified as the owner of Tech Rocks, LLC on a Statement of Information filed on October 12, 2020. A copy of the Statement of Information is attached to his declaration as Ex. D. The declaration further states that Alvin's LinkedIn profile identifies him as CEO of Tech Rocks, (see Ex. F), the business website identifies him as an instructor (see Ex. G), and, an interview uploaded to YouTube as part a Local Business Spotlight, he is introduced as the owner of Tech Rocks (see Ex. I.)

Alvin has ten (10) days from service of written notice of entry of order to respond. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc., § 472b.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Genevieve shall prepare a written order consistent with the court's ruling for the court's

signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 12

25-CIV-08327

JANE DOE, ET AL. VS. THOMAS WESTBROOK QUINBY, ET AL.

JANE DOE

AUDREY A. SMITH

THOMAS WESTBROOK QUINBY

PETITION FOR APPROVAL OF COMPROMISE OF MINOR'S CLAIM

TENTATIVE RULING:

Petitioner and counsel are to APPEAR. Zoom appearances are allowed. The court requires appearance for approval of minor's compromises. However, due to the sensitive nature of this case, the court will endeavor to call the matter last and close the courtroom and petitioner should keep the camera off during the entire hearing.

Counsel is to explain where the funds will be deposited. It may be in the petition, but the court did not see it.

The court has reviewed the sealed petition and in exercising its discretion after reviewing all the circumstances, finds that the settlement amount reasonable based upon the circumstances of the case and the need to resolve this case as soon as possible so that the minor does not have to go through further litigation.

The court also finds requested attorneys' fees and costs are reasonable. Counsel is only requesting a 25% contingency, which is lower than the standard contingency. (See *Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 506 ["33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits"]; *Cotchett, Pitre & McCarthy v. Universal Paragon Corp.* (2010) 187 Cal.App.4th 1405, 1421 [noting the arbitrator found that typical contingency for all cases is 33 to 40 percent].) The court has reviewed the factors set forth in California Rule of Court 7.955(b) in making this conclusion. The court finds that the costs are also reasonable.

2:00 PM

LINE 13

25-CIV-08880 JOYCE TURCHETTI VS. AKIVA NIAMEHR, LLP

JOYCE TURCHETTI
LAW OFFICES OF AKIVA NAIMEH, LP

PRO SE
KATELYN P. DEMBOWSKI

DEFENDANT AKIVA NIAMEHR, LLP aka JACOBY AND MEYERS, LLP'S MOTION FOR AN ORDER COMPELLING ARBITRATION AND STAYING THIS LITIGATION

TENTATIVE RULING:

Defendant Akiva Niamehr, LLP aka Jacoby and Meyers, LLP ("Jacoby & Myers") Motion for an Order Compelling Arbitration and Staying the Litigation is GRANTED.

Defendant Jacoby & Meyers seeks to compel the claims asserted against it by Plaintiff Joyce Turchetti to binding arbitration, based on a purported agreement to arbitrate located in the retainer agreement entered into by the parties on August 12, 2024.

Agreements to arbitrate are valid, irrevocable, and enforceable. (Code Civ. Proc., § 1281.) When litigating parties have agreed to arbitrate a dispute, either party may petition or move for an order compelling the dispute to arbitration and staying judicial proceedings. California public policy favors arbitration and the enforcement of agreements to arbitrate according to their terms. (See *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.)

"[T]he threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate." (*Long v. Provide Commerce, Inc.* (2016) 245 Cal.App.4th 855, 861, quoting *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) "This threshold inquiry stems from the basic premise that arbitration is consensual in nature. Thus, while California public policy favors arbitration, there is no policy compelling persons to accept arbitration of controversies which they have not agreed to arbitrate." (*B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 943 [quotation marks omitted].)

A petition to compel arbitration shall be summarily heard in the manner provided by law for the making and hearing of motions. (Code of Civ. Proc., § 1290.2.) Arbitration will be ordered as long as the court finds an agreement to arbitrate exists, absent limited exceptions. (*Id.*, at § 1281.2.) "Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence." (*Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394, 413.)

Here, Jacoby & Meyers carries that burden: it submits evidence showing that Turchetti and "the law firms of Jacoby & Meyers Attorney LLP" entered into a retainer agreement that included an agreement to arbitrate "[a]ny dispute between the parties to this Agreement regarding the construction, application or performance of any services under this Agreement, and any claim

arising out of or relating to this Agreement or its breach, including, without limitation, claims for breach of contract, professional negligence, breach of fiduciary duty, misrepresentation, fraud and disputes regarding Attorney fees and/or costs charged under this Agreement.” (May 4, 2026 Motion, p. 17; see also *id.*, at p. 10, ¶ 2 [agreement was entered into by the parties].) The claims set forth in the First Amended Complaint fall within the scope of this agreement, and the First Amended Complaint further attaches an excerpt from the same retainer agreement containing the provision for arbitration. (See Mar. 9, 2026 First Amended Complaint, pp. 3–11.)

Turchetti has not opposed the motion, and it does not appear that Jacoby & Meyers has waived the right to compel arbitration nor that grounds for rescission of the agreement exist. (See Code Civ. Proc., § 1281.2, subds. (a), (b).)

The motion is therefore GRANTED, and the case is stayed pending the completion of arbitration. (See Code Civ. Proc., § 1281.4.) The case management conference on September 29, 2026 at 9:30 a.m. is VACATED as a result of the stay. The Court sets a case management conference for February 23, 2027 at 9:30 a.m. in Department 4 with a joint case management conference statement due five court days before the conference. If the parties want to advance or continue the conference, they should jointly email Department 4 with alternative dates.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant Akiva Niamehr, LLP aka Jacoby and Meyers, LLP shall prepare, for the court’s signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 14

25-CIV-08880 JOYCE TURCHETTI VS. AKIVA NIAMEHR, LLP

JOYCE TURCHETTI
LAW OFFICES OF AKIVA NAIMEH, LP

PRO SE
KATELYN P. DEMBOWSKI

DEFENDANT AKIVA NIAMEHR, LLP aka JACOBY AND MEYERS, LLP'S DEMURRER TO PLAINTIFF JOYCE TURCHETTI'S
FIRST AMENDED COMPLAINT

TENTATIVE RULING:

In light of the court's tentative ruling on the motion to compel arbitration and stay, the court declines to rule on the motion for lack of jurisdiction.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant Akiva Niamehr, LLP aka Jacoby and Meyers, LLP shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 15

25-CIV-08880 JOYCE TURCHETTI VS. AKIVA NIAMEHR, LLP

JOYCE TURCHETTI
LAW OFFICES OF AKIVA NAIMEH, LP

PRO SE
KATELYN P. DEMBOWSKI

DEFENDANT AKIVA NIAMEHR, LLP aka JACOBY AND MEYERS, LLP'S MOTION TO STRIKE PLAINTIFF JOYCE TURCHETTI'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

In light of the court's tentative ruling on the motion to compel arbitration and stay, the court declines to rule on the motion for lack of jurisdiction.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant Akiva Niamehr, LLP aka Jacoby and Meyers, LLP shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 16

25-CIV-09351

ALEXANDER ROWLAND, ET AL. VS. ACE FUNDING SOURCE LLC

ALEXANDER ROWLAND
ACE FUNDING SOURCE LLC

STEVEN J. MIRSKY
BARUCH C. COHEN

DEFENDANT'S MOTION TO ENFORCE MANDATORY FORUM SELECTION CLAUSE AND DISMISS OR STAY FOR
FORUM NON CONVENIENS

TENTATIVE RULING:

Defendant Ace Funding Source, LLC's ("Defendant") Renewed Motion to Enforce Mandatory Forum Selection Clause and Dismiss or Stay for Forum Non Conveniens is DENIED. The court finds that the forum selection clause contained in the Sale of Future Receipts Agreement between Plaintiff LernaLabs, Inc. ("LLI") and Defendant ("agreement") is not mandatory because it does not provide for exclusive jurisdiction in the New York courts.

Forum non conveniens is an equitable doctrine involving the discretionary power of a court to decline to exercise jurisdiction when it believes the action is more appropriately and justly tried elsewhere. (*Stangvik v. Shiley, Inc.* (1991) 54 Cal.3d 744, 751 (*Stangvik*)). A mandatory forum selection clause in an agreement is ordinarily given effect without any analysis of convenience, and the only question is whether enforcement of the clause would be unreasonable. (*Animal Film, LLC v. D.E.J. Productions, Inc.* (2011) 193 Cal.App.4th 466, 471.) If the clause merely provides for submission to jurisdiction and does not expressly mandate litigation exclusive in a particular forum, then the traditional forum non conveniens analysis applies. (*Ibid.*)

Defendant relies on *Korman v. Princess Cruise Lines, Ltd.* (2019) 32 Cal.App.5th 206, to argue that the forum selection clause is mandatory. The forum selection clause in the agreement in *Korman* stated that "All claims or disputes involving Emotional Harm, bodily injury, illness to or death of any Guest whatsoever, including without limitation those arising out of or relating to this Passage Contract or Your Cruise, shall be litigated before the United States District Courts for the Central District of California in Los Angeles, or as to those lawsuits over which the Federal Courts of the United States lack subject matter jurisdiction, before a court located in Los Angeles County, California, U.S.A., to the exclusion of the courts of any other country, state, city, municipality, county or locale." (*Id.*, at p. 210.)

In contrast, paragraph 20 of the agreement states:

Binding Effect, Governing Law, Venue and Jurisdiction. This Agreement shall be binding upon and inure to the benefit of Seller, Buyer, Guarantor and their respective successors and assigns, except that neither Seller nor Guarantor shall have the right to assign its respective rights hereunder or any interest herein without the prior written consent of Buyer which consent may be withheld in Buyer's sole discretion. Except as set

forth in the Arbitration section, this Agreement shall be governed by and construed in accordance with the laws of the state of New York, without regard to any applicable principles of conflicts of law.

Each Seller and Guarantor understands and agrees that (i) Buyer is located in New York, (ii) Buyer makes all decisions from Buyer's office in New York, (iii) the Agreement is made in New York (that is, no binding contract will be formed until Buyer receives and accepts Seller's signed Agreement in New York, and (iv) Seller's payments are not accepted until received by Buyer in New York. ***Any suit, action or proceeding arising hereunder, or the interpretation, performance or breach of this Agreement, shall, if Buyer so elects, be instituted in any court sitting in New York, (the "Acceptable Forums").*** Each Seller and Guarantor agrees that the Acceptable Forums are convenient to it, and submit to the jurisdiction of the Acceptable Forums and waives any and all objections to jurisdiction or venue. Should such proceeding be initiated in any other forum, each Seller and Guarantor waives any right to oppose any motion or application made by Buyer to transfer such proceeding to an Acceptable Forum. Unless prohibited by law, Buyer, Seller and Guarantor further agree that the mailing by certified or registered mail, return receipt requested, of any process required by any such court will constitute valid and lawful service of process against them, without the necessity for service by any other means provided by statute or rule of court, but without invalidating service performed in accordance with such other provisions.

(Complaint, Exh. B, Agreement, ¶ 20 (emphasis added).)

Contrary to Defendant's argument, the forum selection does not mandate exclusive jurisdiction in a New York court. Although the forum selection clause uses the word "shall" in referring to instituting an action in New York courts, it is qualified by the phrase "if Buyer so elects." Defendant's CEO acknowledges that under the agreement, the action may be brought in New York if Defendant so elects. (Guttman Decl., ¶ 4.) As CEO, he has authority to elect New York as the exclusive forum. (*Id.*, ¶ 5.) Defendant's own evidence supports that the action may only be brought in a New York court if Defendant elected. The implication is that the action could have been brought elsewhere if Defendant did not elect to bring it in a New York court. The language in the agreement does not limit where the Seller, in this case Plaintiff, may bring suit. As such, the parties did not agree that jurisdiction is exclusive to New York courts. Thus, the court finds the forum selection clause is not mandatory.

As such, the traditional forum non conveniens analysis applies instead. (*Animal Film, LLC, supra*, 193 Cal.App.4th at p. 471.) Under the traditional forum non conveniens analysis, the defendant bears the burden of proof. (*Stangvik, supra*, 54 Cal.3d at p. 751.) The defendant must provide the trial court with evidence sufficient to carry out its weighing and balancing analysis. (*National Football League v. Fireman's Fund Ins. Co.* (2013) 216 Cal.App.4th 902, 933, fn. 15.) The court first determines whether the alternate forum is a suitable place for trial. (*Stangvik, supra*, 54 Cal.3d at p. 751.) If the court finds a suitable alternate forum, then the court next considers the private interests of the litigants and the public interests in retaining the action for trial in California. (*Ibid.*) "The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of

access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses.” (*Ibid.*) The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation. (*Ibid.*) Defendant fails to provide any analysis or evidence addressing this traditional forum non conveniens analysis, and therefore it has not met its burden.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 17

26-UDL-00484

DICKENS LIU, ET AL. VS. MAUNG SOE NAING, ET AL.

DICKENS LIU
MAUNG SOE NAING

ILENE M HOCHSTEIN
PRO SE

MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Plaintiffs Dickens Liu's and Elizabeth Liu's motion for summary judgment against Defendants Maung Soe Naing, Khin Ma Ma and Does pursuant to Code of Civil Procedure sections 1170.7 28 and 437c is DENIED.

Parties' requests for judicial notice are GRANTED. (Evid. Code §§ 452, 453.)

A. Background

This is an unlawful detainer action for possession of the subject property 3268 San Jose Avenue in Daly City. Plaintiffs were the high bidders at a trustee's sale of the subject property on November 19, 2025 (Liu Decl. ¶ 7.) The plaintiffs recorded their deed on December 12, 2025. (Liu Decl. ¶ 8, Ex. 6.) On April 14, 2026, plaintiff served defendant with a 3-day notice to quit but defendants refused to leave and remain in possession. (Liu Decl. ¶¶ 11-15.)

The Court notes this is the second motion for summary judgment in the underlying action. The Court denied plaintiff's earlier motion for summary judgment on the merits on July 14, 2026. (See Defendants' Request for Judicial Notice and Defendant's Exhibits, Ex. A.)

B. Legal Standard

A motion for summary judgment shall be granted if the papers submitted show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c, subd. (c).) The movant bears the initial burden to show there is no triable issue of material fact as to the claim and that they are entitled to judgment on the claim as a matter of law. (*Ibid.*)

Under Code of Civil Procedure section 437c, **a party shall not bring more than one motion for summary judgment against an adverse party to an action absent leave of court upon motion and a showing of good cause.** (Code Civ. Proc. § 437c, subd.(a)(4)&(5), emphasis added.) Additionally, "Code of Civil Procedure section 437c, subdivision (f)(2) states that a party may not move for summary judgment based on issues asserted in a prior motion for summary adjudication unless it " 'involves newly discovered facts or circumstances or a change of law.' "

[Citations.].” (*Patterson v. Sacramento City Unified School Dist.* (2007) 155 Cal.App.4th 821, 827, *as modified on denial of reh'g* (Oct. 22, 2007).)

C. Discussion

Here, the Court finds this is plaintiffs’ second motion for summary judgment in this action against defendants without requesting leave of the Court to do so. Furthermore, even if a request had been made to file a second motion, such motion would have been denied because it is made upon the same basis, facts and circumstances as the motion which this Court denied in its July 14, 2026 ruling. Nor was there a change of law in the three days which elapsed between the Court’s ruling and the instant motion’s filing date of July 17, 2026.

Moreover, even if plaintiff had sought- and the Court had granted- leave to bring this second motion for summary judgment, the motion would be denied on the basis of evidence presented by defendants. If movant establishes “ ‘a prima facie showing that justifies a [ruling] in the [plaintiffs] favor, the burden then shifts to the [defendant] to make a prima facie showing of the existence of a triable material factual issue.’ ” (*Rehmani v. Superior Court* (2012) 204 Cal.App.4th 945, 950.) A triable issue of material fact exists “if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. [footnote and citation omitted].” (*Santillan v. Roman Catholic Bishop of Fresno* (2008) 163 Cal.App.4th 4, 9.) Upon review of the defendants’ exhibits and moving papers in support, because the Court finds defendants have raised a question of fact regarding permission to remain on the premises. (See Defendant’s Ex. C.) For all these reasons, plaintiffs’ second unauthorized motion for summary judgment is DENIED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, defendants shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
